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বাংলাদেশ সুপ্রীমকোর্ট

হাইকোর্ট বিভাগ

আপীল সম্পর্কিত

ফৌজদারী

জেলা: Bogura

(Under Section 498 of the Code of Criminal Procedure)

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনে রিভিশন

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Md. Forhad Hossain আবেদনকারী

মাধ্যম

Mr. Md. Babul Morol, Advocate

বনাম

The State

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

প্রতিপক্ষ

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডাদেশ

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

আপীল আদালত

তারিখ

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কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	18.03.2024	Let a Rule be issued calling upon the opposite party to show cause as to why the accused-petitioner should not be enlarged on bail in Dhunat Police Station Case No.07 dated 09.10.2023 corresponding to G.R. Case No.156 of 2023 under Section 09(1) of the Nari-O-Shishu Nirjatan Daan Ain, 2000 (as amended in	

		2023), now pending in the Court of learned Chief Judicial Magistrate, Bogura and/or pass such other or further order or orders as to this Court may seem fit and proper. The Rule is made returnable within 6(six) weeks from date. Mr. Md. Babul Moral, learned Advocate for the petitioner submits that accused Md. Forhad Hossain is willing to marry victim Zakia Khatun and if he is granted ad-interim bail for a limited period then he would marry the victim and submit an Affidavit-of – Compliance to this Court. It turns out from the statement of victim Zakia Khatun made under Section 22 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) that due to alleged rape committed by accused Md. Forhad Hossain she became pregnant and she filed this case due to refusal of above accused to marry her. Ms. Farha Afroze Runa, learned Assistant Attorney General for the State did not raise any objection against granting of bail to the petitioner for a limited period subject to submission of an Affidavit-of-Compliance. On consideration of above materials on record we are granting bail to the petitioner Md. Forhad Hossain for a limited period. Pending disposal of the Rule, let the accused petitioner Md. Forhad Hossain, son of Md. Mahbub Hossain be enlarged on ad-interim bail for a period of
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		3(three) months with condition that before expiry of above bail he would submit an Affidavit-of-Compliance as stated above. If the petitioner fails to submit above Affidavit-of-Compliance above bail will not be further extended. The petitioner shall further execute a bail bond to the satisfaction of the learned Chief Judicial Magistrate, Bogura. The concern Court is at liberty to cancel the bail, if the accused-petitioner misuses the privilege of bail. To 20.10.2024 for submission of Affidavit of Compliance.

দ্রষ্টব্যঃ কালো কালিতে অফিস নোটের একটি ক্রমিক নম্বর এবং লাল কালিতে কোর্টের আদেশের আরেকটি ক্রমিক নম্বর হইবে।

নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩